

Constituent Assembly

On 10 April 1971, the [Provisional Government of Bangladesh](#) was formed in [Mujibnagar](#). It converted the elected Bengali members of the national and provincial assemblies of Pakistan into the [Constituent Assembly of Bangladesh](#). The constituent assembly issued a proclamation of independence, which also served as the [fundamental law](#) of Bangladesh until the adoption of the [constitution](#) in 1972. This proclamation was drafted by Barrister [M Amir-ul Islam](#) and reviewed by Indian Barrister [Subrata Roy Chowdhury](#).^[21] The text is given in the following:-^[19]

Declaration by the Constituent Assembly

PROCLAMATION OF INDEPENDENCE

Mujibnagar, Bangladesh

Dated 10th day of April 1971.

Whereas free elections were held in Bangladesh from 7 December 1970 to 17 January 1971, to elect representatives for the purpose of framing a Constitution,

AND

Whereas at these elections the people of Bangladesh elected 167 out of 169 representatives belonging to the Awami League,

AND

Whereas General Yahya Khan summoned the elected representatives of the people to meet on 3 March 1971, for the purpose of framing a Constitution,

AND

Whereas the Assembly so summoned was arbitrarily and illegally postponed for indefinite period,

AND

Whereas instead of fulfilling their promise and while still conferring with the representatives of the people of Bangladesh, Pakistan authorities declared an unjust and treacherous war,

AND

Whereas in the facts and circumstances of such treacherous conduct Bangabandhu Sheikh Mujibur Rahman, the undisputed leader of the 75 million people of Bangladesh, in due fulfillment of the legitimate right of self-determination of the people of Bangladesh, duly made a declaration of independence at Dacca on 26 March 1971, and urged the people of

Bangladesh to defend the honour and integrity of Bangladesh,

AND

Whereas in the conduct of a ruthless and savage war the Pakistani authorities committed and are still continuously committing numerous acts of genocide and unprecedented tortures, amongst others on the civilian and unarmed people of Bangladesh,

AND

Whereas the Pakistan Government by levying an unjust war and committing genocide and by other repressive measures made it impossible for the elected representatives of the people of Bangladesh to meet and frame a Constitution, and give to themselves a Government,

AND

Whereas the people of Bangladesh by their heroism, bravery and revolutionary fervour have established effective control over the territories of Bangladesh,

We the elected representatives of the people of Bangladesh, as honour bound by the mandate given to us by the people of Bangladesh whose will is supreme duly constituted ourselves into a Constituent Assembly, and

having held mutual consultations, and

in order to ensure for the people of Bangladesh equality, human dignity and social justice,

declare and constitute Bangladesh to be sovereign People's Republic and thereby confirm the declaration of independence already made by Bangabandhu Sheikh Mujibur Rahman, and

do hereby affirm and resolve that till such time as a Constitution is framed, Bangabandhu Sheikh Mujibur Rahman shall be the President of the Republic and that Syed Nazrul Islam shall be the Vice President of the Republic, and

that the President shall be the Supreme Commander of all the Armed Forces of the Republic, shall exercise all the Executive and Legislative powers of the Republic including the power to grant pardon,

shall have the power to appoint a Prime Minister and such other Ministers as he considers necessary,

shall have the power to levy taxes and expend monies,

shall have the power to summon and adjourn the Constituent Assembly, and

do all other things that may be necessary to give to the people of Bangladesh an orderly and

just Government,

We the elected representatives of the people of Bangladesh do further resolve that in the event of there being no President or the President being unable to enter upon his office or being unable to exercise his powers and duties, due to any reason whatsoever, the vice-president shall have and exercise all the powers, duties and responsibilities herein conferred on the President,

We further resolve that we undertake to observe and give effect to all duties and obligations that devolve upon us as a member of the family of nations and under the Charter of United Nations,

We further resolve that this proclamation of independence shall be deemed to have come into effect from 26th day of March 1971.

We further resolve that in order to give effect to this instrument we appoint Prof. Yusuf Ali our duly Constituted Potentiary and to give to the President and the vice-president oaths of office.

PROF. YUSUF ALI

Duly Constituted Potentiary

By and under the authority

of the Constituent Assembly of Bangladesh